

24VECV04017 24VECV04017

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-06-25

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Case Number: 24VECV04017 Hearing Date: June 25, 2026 Dept: B

Tentative Ruling

Gillispie v. Lyft, Case no. 24VECV04017

Hearing date June 25, 2026

Plaintiff's

Motion to Set Aside Dismissal - UNOPPOSED

Plaintiff

Gillispie sues defendants Uber Technologies, Inc., Rasier, LLC, Rasier-CA, LLC, Hertz Global Holdings, Inc. and Wilson for injuries arising out of a motor vehicle accident. The court dismissed the action without prejudice on 12/16/25 for plaintiff's failure to appear at hearing on 12/16/25. See 12/16/25 Min. Order. Plaintiff moves to set aside the dismissal pursuant to Code Civ. Proc. §473(b). The motion is unopposed.

"The

court may, upon any terms as may be just, relieve a party or his or her legal representative from a . . . dismissal . . . taken against him or her through his or her mistake, inadvertence . . . or excusable neglect." Code Civ. Proc. §473(b).

Plaintiff

offers the declaration of counsel Keshishyan. Following multiple rounds of attempted service and amendment, an OSC re: failure to default Uber and Rasier as well as an OSC re: failure to serve Hertz and Wilson was set for 11/14/25. Decl. Keshishyan, paras. 1-26. The court continued the hearings to 12/16/25 and

set an OSC re: dismissal for that date. Id. at para. 26.

Plaintiff's

counsel failed to appear at the 12/16/25 hearing, resulting in a dismissal without prejudice. Decl. Keshishyan, paras. 26-27. Plaintiff's counsel asserts he was unaware of this dismissal and continued attempting to litigate this matter until June, when this motion was filed. Id. at paras. 28-29.

"Notwithstanding

any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any . . . (2) resulting . . . dismissal entered against his or her client, unless the court finds that the . . . dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect." Code Civ. Proc. §473(b). Plaintiff has offered the declaration of counsel asserting the failure to appear 12/16/25 was not intentional. Dismissal was entered 12/16/25; this motion was filed 6/1/26 and is therefore timely by 15 days.

California

favors adjudicating the merits of a case. This motion is unopposed. GRANTED.